CHAPTER 29 Public Interest Litigation

The concept of Public Interest Litigation (PIL) originated and developed in the USA in the 1960s. In the USA, it was designed to provide legal representation to previously unrepresented groups and interests. It was undertaken in recognition of the fact that the ordinary marketplace for legal services fails to provide such services to significant segments of the population and to significant interests. Such groups and interests include the poor, environmentalists, consumers, racial and ethnic minorities, and others.[1]

In India, the concept of PIL is closely related to the concept of judicial activism. The emergence of PIL is mainly attributed to the judicial activism role of the Supreme Court. In other words, the PIL is an outcome of judicial activism. In fact, the PIL is the most popular form (or manifestation) of judicial activism.

In India, the PIL was introduced in the early 1980s. Justice V.R. Krishna Iyer and Justice P.N. Bhagwati were the pioneers of the concept of PIL.

The PIL is also known variously as Social Action Litigation (SAL), Social Interest Litigation (SIL) and Class Action Litigation (CAL).

MEANING OF PIL

The introduction of PIL in India was facilitated by the relaxation of the traditional rule of '*locus standi*'. According to this rule, only that person whose rights are infringed alone can move the court for the remedies, whereas, the PIL is an exception to this traditional rule. Under the PIL, any public-spirited citizen or a social organisation can move the court for the enforcement of the rights of any person or group of persons who because of their poverty or ignorance or socially or economically disadvantaged position are themselves unable to approach the court for the remedies. Thus, in a PIL, any member of the public having 'sufficient interest' can approach the court for enforcing the rights of other persons and redressal of a common grievance.

The Supreme Court has defined the PIL as "a legal action initiated in a court of law for the enforcement of public interest or general interest in which the public or a class of the community have pecuniary interest or some interest by which their legal rights or liabilities are affected."

The PIL is absolutely necessary for maintaining the rule of law, furthering the cause of justice and accelerating the pace of realisation of the constitutional objectives. In other words, the real purposes of the PIL are:

(i) vindication of the rule of law,

(ii) facilitating effective access to justice to the socially and economically weaker sections of the society, and

(iii) meaningful realisation of the fundamental rights.

FEATURES OF PIL

The various features of the PIL are explained below: